

HOUSE BILL No. 1071

DIGEST OF INTRODUCED BILL

Citations Affected: IC 21-12.

Synopsis: Twenty-first century scholarship eligibility. Provides that the commission for higher education may allow a student who does not meet full-time enrollment or credit hour requirements under the twenty-first century scholars program to be eligible or to maintain eligibility for a twenty-first century scholarship award if the student is a student with a disability and meets certain other requirements. Provides that a scholarship may be renewed for the student for the number of academic terms that constitute eight undergraduate academic years. Makes conforming changes.

Effective: July 1, 2026.

Moseley

December 5, 2025, read first time and referred to Committee on Education.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE BILL No. 1071

A BILL FOR AN ACT to amend the Indiana Code concerning higher education.

Be it enacted by the General Assembly of the State of Indiana:

1 SECTION 1. IC 21-12-6-3, AS AMENDED BY P.L.234-2015,
2 SECTION 13, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
3 JULY 1, 2026]: Sec. 3. Money in the fund must be used to provide
4 annual tuition scholarships to qualified scholarship applicants who
5 enroll as ~~full-time~~ students **as described in section 6 or 7 of this**
6 **chapter** at a postsecondary educational institution that qualifies for
7 participation in the program under section 4 of this chapter, unless it is
8 transferred to another fund under this article at the direction of the
9 commission under IC 21-12-1.2-2.

10 SECTION 2. IC 21-12-6-6, AS AMENDED BY P.L.186-2025,
11 SECTION 119, IS AMENDED TO READ AS FOLLOWS
12 [EFFECTIVE JULY 1, 2026]: Sec. 6. (a) A student may apply to the
13 commission for a scholarship. To qualify for a scholarship, the student
14 must meet the following requirements:

- 15 (1) Be an eligible student who qualified to participate in the
16 program under section 5 of this chapter.
17 (2) Be a resident of Indiana.



(3) Be a graduate from a secondary school located in Indiana that meets the admission criteria of an eligible institution and have achieved a cumulative grade point average in high school of:

- (A) at least 2.0 on a 4.0 grading scale, if the student is expected to graduate from high school before July 1, 2014; and
- (B) at least 2.5 on a 4.0 grading scale, if the student is expected to graduate from high school after June 30, 2014.

(4) **Except as provided under subsection (c)**, have applied to attend and be accepted to attend as a full-time student an eligible institution.

(5) Certify in writing that before the student's graduation from high school the student:

- (A) did not illegally use controlled substances (as defined in IC 35-48-1.1-7);
- (B) did not illegally consume alcoholic beverages;
- (C) did not commit any other crime or a delinquent act (as described in IC 31-37-1-2 or IC 31-37-2-2 through IC 31-37-2-5 (or IC 31-6-4-1(a)(1) through IC 31-6-4-1(a)(5) before their repeal));
- (D) timely filed an application for other types of financial assistance available to the student from the state or federal government; and
- (E) completed an academic success program required under the rules adopted by the commission.

(6) Submit to the commission all the information and evidence required by the commission to determine eligibility as a scholarship applicant.

(7) This subdivision applies only to applicants who initially enroll in the program under section 5 of this chapter or IC 21-12-6.5-2 after June 30, 2011. For purposes of this chapter, applicants who are enrolled in the program before July 1, 2011, will not have an income or financial resources test applied to them when they subsequently apply for a scholarship. Have a lack of financial resources reasonably available to the applicant, as defined by the commission, that, in the absence of an award under this chapter, would deter the scholarship applicant from completing the applicant's education at the approved postsecondary educational institution that the applicant has selected and that has accepted the applicant.

(8) Meet any other minimum criteria established by the commission.

(b) This section applies to an individual who graduates from high



1 school after December 31, 2011. To be eligible for a scholarship under
 2 this section, a student must initially attend an eligible institution
 3 described in subsection (a)(4) not later than the fall semester (or its
 4 equivalent, as determined by the commission) in the year immediately
 5 following the year in which the student graduates from high school.

6 **(c) The commission may allow a student who is otherwise**
 7 **ineligible under subsection (a)(4) to be eligible for a scholarship if**
 8 **the:**

- 9 **(1) student submits a petition to the commission; and**
 10 **(2) commission makes a determination that the student is a**
 11 **student with a disability as defined in the federal Americans**
 12 **With Disabilities Act (42 U.S.C. 12102) for whom a reduced**
 13 **course load has been determined appropriate by the**
 14 **applicable eligible institution.**

15 SECTION 3. IC 21-12-6-7, AS AMENDED BY P.L.215-2018(ss),
 16 SECTION 11, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 17 JULY 1, 2026]: Sec. 7. (a) Subject to IC 21-12-13-2, a scholarship
 18 awarded under section 6 of this chapter or this section may be renewed.
 19 To qualify for a scholarship renewal, a scholarship recipient must do
 20 the following:

- 21 (1) Submit to the commission a renewal application that contains
 22 all the information and evidence required by the commission to
 23 determine eligibility for the scholarship renewal.
 24 (2) **Subject to subsection (d)**, continue to be enrolled as a
 25 full-time student in good standing at an eligible institution.
 26 (3) This subdivision applies only to applicants who initially enroll
 27 in the program under section 5 of this chapter or IC 21-12-6.5-2
 28 after June 30, 2011. For purposes of this chapter, applicants who
 29 are enrolled in the program before July 1, 2011, will not have an
 30 income or financial resources test applied to them when they
 31 subsequently apply to renew a scholarship. Continue to have a
 32 lack of financial resources reasonably available to the applicant,
 33 as defined by the commission, that, in the absence of an award
 34 under this chapter, would deter the scholarship applicant from
 35 completing the applicant's education at the approved
 36 postsecondary educational institution that the applicant has
 37 selected and that has accepted the applicant.
 38 (4) Maintain satisfactory academic progress, as determined by the
 39 eligible institution.
 40 (5) If the student initially enrolls in an eligible institution for an
 41 academic year beginning after August 31, 2019, complete a
 42 student success program designed by the commission in



coordination with eligible institutions.

(6) Beginning in an academic year beginning after August 31, 2017, the student successfully completes:

(A) at least thirty (30) credit hours or the equivalent during the last academic year in which the student received state financial aid; or

(B) at least thirty (30) credit hours or the equivalent during the last academic year in which the student was enrolled in postsecondary education.

(7) Continue to meet any other minimum criteria established by the commission.

(b) In determining eligibility under subsection (a)(6), the commission shall apply all the following types of credits regardless of whether the credits were completed during the last academic year described in subsection (a)(6)(A) or (a)(6)(B):

(1) Credits earned from dual credit, advanced placement, Cambridge International, and international baccalaureate courses.

(2) College credits earned during high school.

(3) Credits earned exceeding thirty (30) credit hours during a previous academic year in which a student received state financial aid.

(c) The commission may allow a student who is otherwise ineligible under subsection (a)(6) for an award during the next academic year to maintain eligibility for an award if the student submits a petition to the commission and the commission makes a determination that:

(1) extenuating circumstances (as determined by the commission) prevented the student from meeting the requirements under subsection (a)(6); or

(2) the student is a student with a disability as defined in the federal Americans With Disabilities Act (42 U.S.C. 12102) for whom a reduced course load has been determined appropriate by the applicable eligible institution.

(d) The commission may allow a student who is otherwise ineligible under subsection (a)(2) for an award during an academic year to maintain eligibility for an award if the:

(1) student submits a petition to the commission; and

(2) commission makes a determination that the student is:

(A) a student with a disability as defined in the federal Americans With Disabilities Act (42 U.S.C. 12102) for whom a reduced course load has been determined appropriate by the applicable eligible institution; and

(B) in good standing with the applicable eligible institution.



SECTION 4. IC 21-12-6-8, AS AMENDED BY P.L.281-2013, SECTION 18, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 8. **(a) Except as provided under subsection (b),** a scholarship may be renewed under this chapter for a total scholarship award that does not exceed the number of academic terms that constitutes four (4) undergraduate academic years.

(b) A scholarship may be renewed under this chapter for a student described in section 6(c) or 7(d) of this chapter for the number of academic terms that constitutes eight (8) undergraduate academic years. However, the total amount awarded to a scholarship applicant under this chapter may not exceed an amount that is equal to the total award amount that the scholarship applicant would be eligible to receive under section 10.3 of this chapter for the number of academic terms that constitutes four (4) undergraduate academic years.

SECTION 5. IC 21-12-6-10.3, AS AMENDED BY P.L.52-2022, SECTION 2, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 10.3. (a) This section applies to a student who qualifies for a scholarship under section 6 or 7 of this chapter, if the student initially enrolls in the program after June 30, 2011. Applicants who are enrolled in the program before July 1, 2011, will not have an income or financial resources test applied to them under this section when they subsequently apply for a scholarship or apply to renew a scholarship.

(b) A scholarship applicant shall be awarded the following amount as adjusted under subsections (c) and (d):

(1) If the scholarship applicant attends an approved postsecondary educational institution that is a state educational institution, the full educational costs that the scholarship applicant would otherwise be required to pay at the eligible institution.

(2) If the scholarship applicant attends an approved postsecondary educational institution that is private, the greater of the:

(A) average of the educational costs of all state educational institutions, not including Ivy Tech Community College; or

(B) amount the applicant is eligible to receive under IC 21-12-4.

(3) If the scholarship applicant attends an approved postsecondary educational institution that is a postsecondary credit bearing proprietary educational institution, the lesser of the educational costs that the scholarship applicant would otherwise be required to pay at the postsecondary credit bearing proprietary educational institution or the educational costs of Ivy Tech Community



College.

However, the amount awarded to an eligible student described in section 6(c) or 7(d) of this chapter may not be more than the full educational costs that the scholarship applicant would otherwise be required to pay at the eligible institution.

(c) The amount of an award under subsection (b) shall be reduced by:

(1) for an amount awarded before September 1, 2014:

(A) the amount of the Frank O'Bannon grant awarded to the scholarship applicant; plus

(B) an additional amount based on the federal needs calculation, if necessary, as determined by the commission, to provide scholarships within the available appropriation; or

(2) for an amount awarded after August 31, 2014, the amount based on the federal needs calculation, if necessary, as determined by the commission, to provide scholarships within the available appropriation.

(d) The total of all tuition scholarships awarded under this section in a state fiscal year may not exceed the amount available for distribution from the fund for scholarships under this chapter. If the total amount to be distributed from the fund in a state fiscal year exceeds the amount available for distribution, the amount to be distributed to each eligible applicant shall be proportionately reduced so that the total reductions equal the amount of the excess based on the relative financial need of each eligible applicant.

SECTION 6. IC 21-12-13-2, AS AMENDED BY P.L.11-2023, SECTION 71, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 2. (a) This section applies to the following scholarship and fee remission statutes:

(1) IC 21-12-3.

(2) IC 21-12-4.

(3) IC 21-12-6.

(4) IC 21-13-2.

(5) IC 21-13-7.

(6) IC 21-13-8.

(7) IC 21-13-4.

(8) IC 21-14-5.

(9) IC 21-12-16.

(b) Except as provided in subsection (c), and except for a scholarship granted under IC 21-13-8 to an individual described in IC 21-13-8-1(b)(2)(B), a grant or reduction in tuition or fees, including all renewals and extensions, under any of the laws listed in subsection



- 1 (a) may not exceed the number of terms that constitutes:
2 (1) except as provided in subdivision (2) **and IC 21-12-6-8**, four
3 (4) undergraduate academic years, as determined by the
4 commission; or
5 (2) for purposes of IC 21-13-4, six (6) academic years as
6 determined by the commission;
7 and must be used within eight (8) years after the date the individual
8 first applies and becomes eligible for benefits under the applicable law.
9 (c) The commission may, subject to the availability of funds, extend
10 eligibility under subsection (b) for a recipient who used a grant or
11 reduction in tuition or fees under any of the statutes listed in subsection
12 (a) at a postsecondary educational institution that closed. The extension
13 of eligibility may not exceed the number of terms used by the recipient
14 at the postsecondary educational institution that closed.

